

Terms and Conditions of Use Naue Portal

§ 1 Scope of Application

1. These Terms and Conditions of Use shall apply to the use of the portal Naue Portal including the programs and calculation tools available via the Naue Portal (hereinafter referred to altogether as: Naue Portal), which is operated by Naue GmbH & Co. KG (hereinafter referred to as: Naue) and made available to the User for his utilization.
2. The User's General Terms and Conditions of Trade shall not be applicable even if Naue fail to oppose their validity or provide services unconditionally.
3. These General Terms and Conditions of Use shall not apply even if the User is a consumer according to § 13 of the German Civil Code.
4. These Terms and Conditions shall only apply for use of the Naue Portal. For any transactions to be made in return for payment, in particular purchase contracts, the specifically applicable General Terms and Conditions of Sale of Naue GmbH & Co. KG made available through the Internet page <https://www.naue.com/> and the International Terms and Conditions of Sale of Naue GmbH & Co. KG applicable to Naue customers not domiciled in Germany, which may be requested from the sales department of Naue, shall apply.

§ 2 Subject Matter of the Agreement

1. The Naue Portal is a web-based software portal containing different programme modules, digital tools and documents for technical advice, configuration, design, calculation, documentation, storage and management of the results and files of the work steps mentioned above for the planning of geotechnical constructions with geosynthetics, natural fibre products and biodegradable products, fasteners and supplementary components (hereafter: Naue Products) and which are made available to the User for the work steps of project processing mentioned above, in particular for

- separation, filtration and drainage layers,
- sealing systems with the associated protection layers and functional layers,
- erosion control systems,
- stabilised and reinforced unbound granular layers, protection layers and base course layers,
- working platforms under predominantly static loads from standing or slow-moving construction equipment,
- earthworks and dams on weak subgrade or over cavities
- earthworks and dams built on subgrade improvement measures or over piles
- steep slopes and retaining walls,

whereby the user inputs data, information and estimations during project processing. The structures are always to be considered in the context of their individual purpose and use, especially when the above programmes, tools and documents are combined to process individual structures. The Naue Portal was created as a tool to support and simplify the conceptual design process prior to final and detailed design.

2. The data, assumptions and calculations on which the Naue Portal is based and determined are based on the technical knowledge of Naue. The specific characteristics and properties of the Naue Products and the experience in usage of the Naue Products are integral part of the results

of the Naue Portal. Therefore, the results of the Naue Portal cannot be transferred to articles of any other manufacturers or constructions with articles of other manufacturer.

3. Naue concede to the User a right for free of charge use of the Naue Portal according to the provisions outlined below. The right of use of the Naue Portal is related to the specific use of the version that is currently available. The Naue Portal can be accessed through the domain <https://portal.naue.com>.
4. Naue reserves the right to offer existing and/or additional services and/or functionalities of the Naue Portal in the future for a royalty.
5. Naue shall not be responsible for compliance of the Naue Portal with the User's needs, which he shall be committed to check for himself in a first step. The User is aware of the fact that provision of a completely fault-free Portal is impossible due to the complexity of these types of systems and that no permanent and uninterrupted availability of the Naue Portal can be ensured. Both these features shall at the same time not deemed to be owed contractually under this Agreement.
6. It is impossible to place any orders and to conclude any contracts or agreements through the Naue Portal. The Naue Portal is exclusively meant to provide a first information to the User and does not substitute for any more detailed consultancy about the technical design of construction. To place an order for Naue Products, please contact the sales department of Naue.

§ 3 Scope of the Rights of Use and Limitation of Use

1. The Naue Portal is protected by copyright. Any and all rights in the Naue Portal shall be and remain the exclusive property of Naue in the relationship between Naue and the User.
2. Naue shall concede to the User the simple, non-exclusive, non-assignable right of use, which is limited to the duration of the registration and at any time revocable, to use the Naue Portal for the purposes described above.
3. Each particular information provided through the Naue Portal can be saved and printed by the User in the normal scope and framework for his or her own business purposes. Copying, reproduction or saving of the Naue Portal even on data carriers and use of the Naue Portal in other systems is prohibited.
4. The right of use shall explicitly be restricted, in terms of its contents, to the User's own purposes. The User shall in no case be entitled to let the Naue Portal on lease or sub-license it in any way, reproduce or make it accessible to the public or provide it to any third parties with or without charge without Naue's consent in writing, for example by the way of Application Service Providing (ASP) or in the form of a software as a Service (SaaS).

§ 4 Access to the Naue Portal, Registration and Technical Prerequisites

1. Access to the Naue Portal shall be possible online-based through an Internet page, which is currently achievable via the domain <https://portal.naue.com>. To be able to use the Naue Portal, the User has to register himself in a first step by entering specific data, such as the company name.
2. For access to the Naue Portal, the User will need an email address and a password, both jointly referred to as access data. The validity of the email address used is verified during the registration process. The password can be set by the User during the registration process. The activation of

the access and the completion of the registration process takes place after individual verification by Naue.

3. In order to be able to access the Naue Portal without any technical complications, Internet access with sufficient broadband internet speed and use of a current version of a common Internet Browser is required.
4. Naue may at any time adjust the system requirements as needed to ensure access to the Naue Portal according to the current state of technology. The User may at any time seek information about the current system requirements with Naue.

§ 5 Availability of the Naue Portal

1. Naue shall endeavour to ensure the possibility of use of the Naue Portal as uninterruptedly as possible. Naue shall at the same time strive for an all-day availability. Naue will however not provide any warranty for the trouble-free possibility of use of the Naue Portal.
2. In order to maintain the possibility of use of the Naue Portal, to eliminate any faults and defects and update the information provided, it is necessary to subject the Naue Portal to a maintenance service from time to time. This means that Naue is entitled to carry out maintenance of the Naue Portal on a regular basis. During maintenance times, the Naue Portal shall not be available at all or only for limited use.
3. Naue shall endeavour to keep the maintenance times as short as possible and to carry out any and all maintenance work during low-use periods, if possible.

§ 6 User's Obligations

1. The User shall be obliged to select the information and data accurately before entering them into the Naue Portal and to check them for plausibility, correctness and completeness. The User shall likewise be obliged to check the result of data processing by the Naue Portal for plausibility, correctness and completeness. The correct further use of the results concerning the special requirements about earthwork, foundations and geotechnical calculations and/or the review of their completeness for the factual requirements at the place of use (e.g. building materials, geometry, loads, construction phases) lies within the realm of the User on correct assessment and interpretation of all issues of the building structure, the subground and the intended use. The data processing functions available on the Naue Portal shall in no way replace the detailed design and static calculation in accordance with the current state-of-the-art in technology and rules of technology in the specific field of application and the specific area of use of the related country and the comprehensive project-related advisory service for the use of Naue Products.
2. The User shall be committed to take appropriate technical and organisational safety measures that prevent any third parties from using the User's access data or to get access to the Naue Portal in any other way. In particular, the User shall be committed to save the data securely.
3. Naue confirm to their correct and best knowledge and belief that they are currently neither aware of any faults or errors in the Naue Portal nor of any rights of third parties preventing the use of the Naue Portal. Any errors or incomplete or insufficient data processing results of the Naue Portal shall be notified by the User in text format to Naue immediately (portal@naue.com). The User shall further forward any information he has found about any such error to Naue.

§ 7 Liability

1. The results of the data processing (for instance information and data acquired and/or the geosynthetics mentioned as well as the information on the construction materials and the designs) are based on the information, estimations and data provided by the customer. Naue point to the fact that the suitability and possibility of use of the results and Naue Products rely, among other things, especially on the suitability of all other circumstances and facts, especially the soil properties and hydraulic marginal conditions. The data processing results acquired are therefore a first unbinding proposal and not to be considered as a final static calculation of the design. It is therefore imperatively required for the user to carry out a final calculation while taking into account all relevant influencing factors, and to check the suitability of the design, calculation and the Naue products himself. The data processing results shall neither represent a legally binding declaration nor an advisory service provided by Naue. The final responsibility for the selection of the Naue Products, the design of the entire construction and the observation of all technical rules and laws (e.g. on environmental or health and safety issues) and other regulations in the specific regions of the related country shall be the User's responsibility himself.
2. Naue's liability for damages - irrespective of their legal grounds - shall be applicable only if the damage (a) is due to a culpable breach of an obligation, compliance with which only facilitates the due and correct performance of the User Agreement and compliance with which the User may rely on regularly (essential contractual obligation), or (b) that has been due to a grossly negligent or wilful breach of duty.
3. If Naue is responsible according to paragraph 7.2. of these Terms and Conditions of Use for breach of an essential contractual obligation, Naue's liability for damages shall be limited to the typically occurring damage that is foreseeable at the time of conclusion of the contract.
4. The above referenced limitation of liability according to the above paragraphs 7.2 and 7.3 of these Terms and Conditions of Liability shall not apply to the liability (a) according to the Law on Product Liability (b) due to acceptance of a guarantee (c) due to a fraudulent non-disclosure of a defect (d) for damages resulting from a culpable injury of life, of the body or the health of individuals and (e) for damages resulting from a grossly negligent or wilful breach of duty. For the purposes of clarification, it is determined that Naue will not assume any warranty.

§ 8 Term and Termination

1. The User Agreement for the Naue Portal shall be deemed to be concluded for the term of the registration. Both parties hereto shall at any time be entitled to terminate the User Agreement at two weeks prior notice to the end of a calendar month.
2. Apart from that, this User Agreement may be terminated extraordinarily in the event of a grave and weighty reason. Any such grave and weighty reason shall be deemed to exist if the terminating party cannot be reasonably expected to continue the contractual relationship until expiry of the period of termination.
3. Naue shall in particular be entitled to give extraordinary notice of termination if the User leaves use of the Naue Portal to a third party or if the service for the Naue Portal is not maintained by Naue.

§ 9 Blockage of Access to the Naue Portal

Naue shall likewise be entitled to block access to the Naue Portal if the User violates any obligations or duties according to this User Agreement.

§ 10 Final Provisions

1. In the event any provision of this User Agreement should be or become ineffective, the ineffectiveness of the remaining provisions shall not be affected thereby.
2. German Law shall apply to the exclusion of the United Nations Convention on Contracts.
3. The exclusive place of jurisdiction for any conflicts arising between the parties hereto shall be the corporate domicile of Naue, if the User is an entrepreneur, a legal person under public law or a legal entity under public law.

Espelkamp/Germany, February 2022